

Amendment No. 2 to SB0817

White
Signature of Sponsor

AMEND Senate Bill No. 817

House Bill No. 760*

by deleting subsection (e) in Section 2 and substituting instead the following:

(e)

(1) A school nurse or other trained school personnel authorized to administer a bronchodilator rescue inhaler pursuant to this section is not liable for any civil damages for ordinary negligence in acts or omissions resulting from the administration of a bronchodilator rescue inhaler to a student believed in good faith to be having life-threatening asthma symptoms or respiratory distress.

(2) An LEA or public school, including a public charter school, that contracts for or employs a school nurse or other trained school personnel who administers a bronchodilator rescue inhaler pursuant to this section is not liable for any civil damages for ordinary negligence in acts or omissions resulting from the administration of a bronchodilator rescue inhaler to a student believed in good faith to be having life-threatening asthma symptoms or respiratory distress.